

24STCV20551 24STCV20551

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F15%2F2026

Source SHA-256: 02cc71ba672d77be88084913a3b2c13be304cd8b49c8f7c436415944a7d072db

Case Number: 24STCV20551 Hearing Date: July 15, 2026 Dept: 224

Cornwell v. DRI Torrance LLC

FINAL RULING

The Court conducted a combined hearing on approximately 27 pending motions to compel initial discovery responses and an Informal Discovery Conference concerning those motions.

The motions to compel initial discovery responses as to Plaintiffs Steve Cornwell and Kendel Cody Douglas Cornwell are moot because those plaintiffs have been dismissed from the action with a waiver of costs. Accordingly, six motions are disposed of on that basis.

The remaining 21 motions to compel initial discovery responses, corresponding to Reservation Nos. 3434, 7922, 0797, 4170, 6862, 2487, 5633, 3726, 6311, and 5111, are also moot as to the requested responses. At the hearing, Defendant conceded that verified initial responses, without objections, have now been served.

At oral argument, Plaintiffs represented that they began serving responses in August 2025, before any deadline extensions had passed. Defendants clarified that none of the pending motions concern the responses served in August 2025. Defendants motions all concern discovery where no responses were served at all until after the extension for discovery responses had passed, and after the instant motions were filed.

The Court finds that the responses at issue in the 21 pending motions were not served until after Defendants had filed their motions to compel initial responses on September 24, 2025, and well after the parties' agreed deadline of August 22, 2025. The Court finds that after the August 22 deadline, Defendant's communications to Plaintiff about the status of discovery responses went unanswered. Accordingly, some sanctions are warranted. The Court agrees with Plaintiff that the total amount sought is unreasonable, in light of this Court addressing these motions all in one hearing on today's date.

The Court finds defense counsel's hourly rate of \$265 to be reasonable. The Court awards:

1 hour for preparing the first three motions for each type of discovery: \$795;

0.5 hours per motion for the remaining 18 motions, which required only modification of the parties' names and exhibits: \$2,385;

Filing fees of \$60 per motion for 21 motions: \$1,260;

1 hour for reviewing Plaintiffs' omnibus opposition and preparing an omnibus reply: \$265; and

1 hour for appearing at the July 15, 2026 hearing: \$265.

The total monetary sanctions awarded are \$4,970.

The sanctions shall be paid within 30 days. Defense counsel shall advise Plaintiffs' counsel of the proper payee for the sanctions check.

The Court discharges the Order to Show Cause Re Appointment of A Discovery Referee.